

1 ENGROSSED HOUSE  
2 BILL NO. 3545

By: Maynard, Hildebrant, Olsen,  
Pae, Alonso-Sandoval, Hill,  
Stewart, and Clinton of the  
House

4 and

5 Alvord of the Senate

6  
7  
8 An Act relating to technology; providing definitions;  
9 clarifying applicability of act; establishing  
10 prohibited uses of artificial intelligence system  
11 (AI) by state agencies; establishing allowed uses of  
12 AI and applicable restrictions; directing state  
13 agencies to take action and report compliance to the  
Office of Management and Enterprise Services (OMES);  
requiring future AI systems comply with act;  
directing OMES to provide report on AI systems used  
by state agencies; providing for codification; and  
providing an effective date.

14  
15  
16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. NEW LAW A new section of law to be codified  
18 in the Oklahoma Statutes as Section 200 of Title 75A, unless there  
19 is created a duplication in numbering, reads as follows:

20 A. As used in this act:

21 1. "Artificial intelligence system" or "AI" means a machine-  
22 based system that, for explicit or implicit objectives, infers from  
23 the input it receives how to generate outputs, such as predictions,  
24 content, recommendations, or decisions, that can influence a

1 physical or virtual environment, with varying levels of autonomy and  
2 adaptiveness after deployment. The term "artificial intelligence  
3 system" or "AI" does not include robotic process automation or other  
4 systems whose behavior is defined solely by human-defined rules to  
5 automatically execute operations;

6 2. "Deepfake" means a video of a person in which his or her  
7 face or body has been digitally altered so that the person appears  
8 to be someone else, the person appears to be saying something that  
9 he or she has never said, or the person appears to be doing  
10 something that he or she has never done. A deepfake is typically  
11 used maliciously or to spread false information;

12 3. "Generative artificial intelligence system" or "GenAI  
13 system" means an artificial intelligence system that is designed to  
14 generate synthetic content, including text, images, video, audio, or  
15 other media, in response to prompts or other inputs. A generative  
16 artificial intelligence system does not include software that  
17 performs basic formatting, grammar correction, translation, or other  
18 assistive editing functions that do not materially generate new  
19 substantive content;

20 4. "High-risk AI decision" means an automated determination,  
21 classification, scoring, or recommendation generated in whole or in  
22 part by an artificial intelligence system that:

- 23 a. is used as the primary basis for a final agency action  
24 affecting an individual's legal rights, eligibility

1           for government benefits or services, imposition of  
2           civil penalties, or legal obligations,

3           b.    results in a substantial and non de minimis impact,  
4           and

5           c.    is not subject to meaningful human review prior to  
6           implementation, and

7           5.    "State agency" means any department, commission, board,  
8           institution, bureau, office, law enforcement agency, or other  
9           entity, by whatever name called, including the legislative and  
10          judicial branches of state government, established in the state  
11          constitution, statutes, session laws, or executive orders.

12          B.    This act shall apply to all computer systems operated by any  
13          state agency, except for systems used in research by state-funded  
14          institutions of higher learning. Also excepted are installed  
15          consumer systems in common personal use, including, but not limited  
16          to, facial recognition used to unlock a smartphone.

17          C.    The following uses of AI by state agencies shall be  
18          prohibited:

19               1.   Cognitive behavioral manipulation of individual persons or  
20               specific groups of persons;

21               2.   Classifying persons based on behavior, socioeconomic status,  
22               or personal characteristics in a manner that results in unlawful  
23               discrimination prohibited by state or federal law;  
24

1        3. Real-time and remote biometric identification systems used  
2 for surveillance in public spaces, such as facial recognition,  
3 except when such use is conducted pursuant to a valid warrant or  
4 court order, or in exigent circumstances involving a specific and  
5 articulable imminent threat to life or serious bodily injury,  
6 including, but not limited to, active shooter incidents or credible  
7 terrorist threats; provided, that any use under exigent  
8 circumstances shall be strictly limited in scope and duration to  
9 address the emergency and shall be subject to post-incident  
10 documentation and supervisory review by the agency; and

11        4. Deepfakes when used for any deceptive or malicious purpose.

12        D. Use of AI by state agencies shall be allowed under the  
13 following circumstances and with the following restrictions:

14        1. No high-risk AI decision shall take effect unless reviewed  
15 and approved by a human employee or officer of the state agency who  
16 has decision-making authority and is trained in and aware of the  
17 limitations of the AI system;

18        2. Any material produced by a generative artificial  
19 intelligence system that has not been reviewed, and possibly edited  
20 by a human in an appropriate responsible position, must be  
21 accompanied by a disclosure that the content was generated by AI;  
22 and

23        3. In all other circumstances in which a human user is  
24 interacting with an AI system, either directly or indirectly, the

1 user must be informed that he or she is interacting with an AI  
2 system.

3 E. All state agencies shall take the following actions no later  
4 than nine (9) months after the effective date of this act and report  
5 their compliance with the Office of Management of Enterprise  
6 Services (OMES):

7 1. Review the use of AI in their computer systems to verify  
8 that they comply with the provisions of this act. Any AI system  
9 that is prohibited shall be removed; and

10 2. Modify all procedures relative to any use of AI that are  
11 inconsistent with this act so that these procedures are consistent  
12 with the requirements of this act.

13 F. Any AI systems newly deployed by a state agency after the  
14 effective date of this act shall comply with the provisions of this  
15 act. All newly implemented procedures relative to any use of AI  
16 that are implemented by a state agency after the effective date of  
17 this act shall be consistent with the requirements of this act.

18 G. On December 1, 2026, and every year thereafter, OMES shall  
19 provide to the Governor, the Speaker of the Oklahoma House of  
20 Representatives, and the President Pro Tempore of the Oklahoma State  
21 Senate a report summarizing AI systems identified by state agencies,  
22 recording which of those systems were prohibited and removed in  
23 compliance with this act, which systems are allowed according to  
24 this act, and what procedures have been implemented to ensure that

1 the procurement and use of these systems will be in compliance with  
2 this act. This report shall be updated annually to include new  
3 systems that state agencies have purchased. All such reports shall  
4 also be posted on the OMES website.

5 SECTION 2. This act shall become effective November 1, 2026.

6 Passed the House of Representatives the 11th day of March, 2026.

7  
8 \_\_\_\_\_  
9 Presiding Officer of the House  
10 of Representatives

11 Passed the Senate the \_\_\_\_\_ day of \_\_\_\_\_, 2026.

12  
13 \_\_\_\_\_  
14 Presiding Officer of the Senate  
15  
16  
17  
18  
19  
20  
21  
22  
23  
24